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Tentative Ruling

Re: ***Aguilar vs Bal***
Superior Court Case No. 21CECG03169

Hearing Date: August 5, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To deny, without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

Petition submitted by Petitioner seeks approval for the compromise of minor claimant's claim resulting from a motor vehicle accident. However, the petition has two issues that need to be addressed before the settlement can be approved.

First, item 8.a. indicates Minor has recovered from her injuries. The court lacks any medical records to corroborate this assessment. The only medical record provided is from June 12, 2019 and Minor was suffering from her injuries at that time.

Second, item 12. is not filled out. Minor went to the hospital and the petition does not indicate how the bills were paid or if any money is owing.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/03/26 .
(Judge's initials) (Date)

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Tentative Ruling

Re: **N.F. v. Gruber, et al.**
Superior Court Case No. 24CECG01966

Hearing Date: August 5, 2026 (Dept. 501)

Motion: (1) by Defendant Fresno Unified School District for Summary Judgment
(2) by Defendant Lea Gruber for Summary Judgment

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant Defendant Fresno Unified School District's motion for summary judgment. Defendant is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

To grant Defendant Lea Gruber's motion for summary judgment. Defendant is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

Plaintiff N.F., a minor, brings this action for damages alleging that he was verbally and sexually harassed by defendant Lea Gruber, a teacher for defendant Fresno Unified School District ("FUSD"). Plaintiff's Second Amended Complaint alleges two causes of action against FUSD, the second cause of action alleging vicarious liability for negligence of its employee pursuant to Government Code section 815.2 and the third cause of action alleging breach of mandatory duty pursuant to Government Code section 815.6. Against defendant Gruber, plaintiff alleges a single cause of action for negligence. Both defendants now move for summary judgment on the basis that they are entitled to immunity under Education Code section 44808.

As the moving party, defendant bears the burden of proving that there is a complete defense to each challenged cause of action or that plaintiff cannot establish one or more elements of each of its challenged causes of action. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) If that burden is met, plaintiff can defeat the motion by demonstrating a triable issue of material fact. (*Martinez v. Enterprise Rent-A-Car Co.* (2004) 119 Cal.App.4th 46, 52-53.) In determining whether a triable issue of material fact exists, the moving party's evidence is strictly construed, while that of their opponent's is liberally construed. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 20.)

“An ‘immunity’ is ‘[a]ny exemption from a duty [or] liability’ [Citation.] It ‘avoids liability in tort under all circumstances, within the limits of the immunity itself; it is conferred, not because of the particular facts, but because of the status or position of the favored defendant; and it does not deny the tort, but [rather] the resulting liability....’ [Citation.]’ [Citation.] When the law grants an immunity, it does not mean that the defendant’s conduct is not tortious, but rather that the defendant is absolved from liability.” (*Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336, 378.)

Defendant FUSD’s Motion for Summary Judgment

Defendant FUSD argues it is entitled to immunity from plaintiff’s claims of vicarious liability and breach of mandatory duty under Education Code section 44808. As alleged in the operative complaint, the school district’s liability is premised on its failure to supervise and protect plaintiff from harm on campus (SAC, ¶¶ 23-24) and due to its failure to supervise its employee Gruber such that the harassment occurred (SAC, ¶¶ 24, 33).

Education Code section 44808 states,

Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances.

In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board.

(Ed. Code, § 44808, emphasis added.)

“Section 44808 ‘ “thus limits the liability of schools for after hours, off-campus activity, absent a specific undertaking.”’ The provision ‘ “ ‘grants a district [and its employees] immunity [for a student’s injuries] unless [the] student was (or should have been) directly supervised during a specified undertaking.’”’” (*Taylor v. Los Angeles Unified School District* (2025) 112 Cal.App.5th 769, 774, internal citations omitted.)

FUSD asserts it is undisputed that the harassment alleged in the complaint consisted to two phone calls by defendant Gruber to plaintiff’s mother on May 13, 2023 at approximately 9:30 p.m. while plaintiff and his mother were at their residence. (UMF Nos. 3, 4, 8, 9.) As the alleged harassing phone calls were made after school hours, while plaintiff was off campus and not during a school-sponsored activity, defendant FUSD argues Education Code section 44808 immunity applies.

The court finds defendant FUSD has met its burden in demonstrating it is entitled to summary judgment on the basis that it is immune from liability from the after-hours, off-campus negligent acts alleged.

In opposition plaintiff does not dispute the material facts supporting FUSD's motion and instead asserts the negligent acts of its employee were done under the color of her authority as a teacher. Plaintiff cites as additional material facts that the phone calls were made based on information learned at school and using the phone number defendant Gruber obtained from school records. (AMF Nos. 1, 2, 7, 8, 12.) Defendant Gruber also introduced herself as a teacher and was calling to follow up on her concerns regarding her student. (AMF Nos. 10, 11, 13.) Plaintiff argues the use of Gruber's position as a teacher creates a triable issue of act as to whether there was a specific undertaking by defendant Gruber and exception to immunity.

Plaintiff describes defendant Gruber's conduct as a school-related undertaking in her investigation of the complaints against plaintiff occurring on campus that later resulted in injury off campus. (*Hoyem v. Manhattan Beach City School District* (1978) 22 Cal.3d 508; *Perna v. Conejo Valley Unified School District* (1983) 143 Cal.App.3d 292.) The authorities relied upon by plaintiff are distinguishable.

In *Hoyem v. Manhattan Beach City School District*, a summer school student left campus before the end of the scheduled day and was struck by a motorcycle. (*Hoyem, supra*, 22 Cal.3d at p. 512.) The school district argues there was no duty to supervise students to prevent off-campus accidents unless the school had specially undertaken to provide off-campus supervision. (*Id.*, at p. 514.) The court held the school had a duty to exercise reasonable care in supervising its pupils while on school premises and a cause of action for negligence based on the school's failure to supervise the student while on campus was stated. (*Id.*, at p. 519.) The facts of *Hoyem* are not analogous with those of the case at bench. The negligent off-campus incident occurred during the school day while the student was under the supervision of the school. Here, it is undisputed that the phone calls occurred while plaintiff was at his residence and well after the end of the school day. Unlike the student in *Hoyem* who should have been in class when the off-campus incident occurred, there is no reason to believe plaintiff should have been under the supervision of the school when the phone calls occurred.

In *Perna v. Conejo Valley Unified School District*, two students stayed after school at the direction of a teacher past the time when the crossing guard was no longer on duty and were struck by a vehicle when crossing in the crosswalk. (*Perna, supra*, 143 Cal.App.3d at p. 294.) The court found that the complaint stated a cause of action based on the negligent conduct of keeping the children after school occurring while still on school premises. (*Id.*, at p. 296.)

Here, in contrast with both *Hoyem* and *Perna*, the negligence alleged is the after school, off-campus phone calls regarding plaintiff, not defendant Gruber's questioning of the alleged victim on campus at the end of the school day. The additional facts raised by plaintiff do not support finding there is a question of fact as to whether there was on campus negligence. The additional facts regarding defendant Gruber's using information she learned on campus also do not support finding there is a question of act as to whether there was a specific undertaking to supervise or care for plaintiff at the time of the alleged negligent incidents.

Plaintiff alleges FUSD was negligent in failing to supervise and protect plaintiff from harm on campus and negligent in hiring and supervising defendant Gruber. (SAC, ¶¶ 24, 36.) These allegations are similar to those of *Taylor v. Los Angeles Unified School District*, where plaintiff argued that the district was liable for the off-campus death of their child who was being babysat by a teacher negligently hired and supervised by the district. (*Taylor, supra*, 112 Cal.App.5th at p. 772.) As in *Taylor*, the negligent act here occurred off-campus, outside of school hours, and unrelated to any school-sponsored event or activity. The court held the Education Code section 44808 immunity precluded the school district's liability and rejected the argument to extend the exception to immunity to incidents that could be traced back to negligent hiring and supervision. (*Id.*, at p. 776.) "This interpretation would run afoul of section 44808's express purpose of limiting school district liability for harm that occurs to students when they are not on school property or engaged in school-sponsored or school-supervised activities. (*Ibid.*)

The court finds the immunity under Education Code section 44808 applies to defendant FUSD. Accordingly, defendant FUSD's motion for summary judgment of the second amended complaint is granted.

Defendant Lea Gruber's Motion for Summary Judgment

Defendant Gruber argues there is no dispute that the negligent acts alleged, two phone calls to plaintiff's home, occurred while plaintiff was at his home and after school hours and are alleged by plaintiff to have been made while in the course and scope of Gruber's employment with FUSD. (UMF Nos. 1-6.) As such, defendant Gruber asserts she is entitled to immunity under Education Code section 44808 as an employee of the school district.

Education Code section 44808 states,

Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances.

In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board.

(Ed. Code, § 44808, emphasis added.)

"Section 44808 ' "thus limits the liability of schools for after hours, off-campus activity, absent a specific undertaking." The provision ' " 'grants a district [and its employees] immunity [for a student's injuries] unless [the] student was (or should have been) directly supervised during a specified undertaking.'"" (*Taylor v. Los Angeles Unified School District, supra*, 112 Cal.App.5th 769, 774, internal citations omitted.)

In the case at bench, a similarly contradictory situation would result in in light of the court having found FUSD is entitled to immunity under section 44808. Defendant Gruber's negligence in placing the phone calls is either outside the course and scope of her employment, which is not pleaded, or Gruber's actions are within the course and scope of her employment as pleaded and she is immune from liability under Education Code section 44808. With respect to whether defendant Gruber was acting in the course and scope of her employment the "fact" supported is limited to plaintiff having alleged that Gruber was acting in the course and scope of her employment at the time she placed the phone calls and reference to the operative complaint as evidence. The court finds this is sufficient to meet defendant's burden in moving for summary judgment.

Accordingly, defendant Gruber's motion for summary judgment is granted.

Tentative Ruling

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